

GZ: 2025-0.303.076 dated April 18, 2025 (Case Number: DSB-D246.107)

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## DECISION

### RULING

The Data Protection Authority decides on the data protection complaint of Kiran A\*\*\*, born \*\*.\*\*.1989 (complaining party), dated March 17, 2025, against the Federal Office for Immigration and Asylum (respondent) regarding the violation of the right to erasure as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 3, Art. 9 para. 2, Art. 14 para. 1, and Art. 19 of Regulation (EU) 2018/1860 (Regulation on the use of the Schengen Information System for the return of illegally staying third-country nationals, hereinafter: SIS Return Regulation), OJ L 312 of December 7, 2018, p. 1; Art. 53 para. 1 and Art. 54 para. 1 of Regulation (EU) 2018/1861 (Regulation on the establishment, operation, and use of the Schengen Information System [SIS] in the area of border controls, hereinafter: SIS Regulation), OJ L 312 of December 7, 2018, p. 14; Art. 17 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1, 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

### REASONING

#### A. Submissions of the Parties and Procedural History

A.1. In a submission dated March 17, 2025, the complaining party (hereinafter: CP) claimed a violation of the right to erasure. In summary, it was stated that the CP had applied for international protection on August 27, 2019, which was rejected by a decision dated November 29, 2019, and a return decision was issued. The decision was confirmed by the Federal Administrative Court and became final on January 23, 2020. Furthermore, the respondent (hereinafter: R) made an entry (notice) in the SIS on August 24, 2023. The CP has been living in Portugal for several years and is working there. The CP claims to be violated in the right to erasure because R does not delete the notice from the Schengen Information System (SIS).

Several attachments were included with the submission.

A.2. In a statement dated April 14, 2025, R summarized that a return decision without an entry ban was issued against the CP by a decision dated November 29, 2019. Therefore, a notice was issued on August 24, 2023, for the return of the CP in the Schengen Information System (SIS). The requested deletion from September 30, 2024, was not carried out. A deletion must be carried out according to the SIS Return Regulation when the competent authority has revoked or declared null and void the decision based on which the notice was entered, or when a foreign national has demonstrably left the territory of the Member States. The CP stated that they left Austria on October 1, 2022, and traveled by plane from Vienna to Lisbon. Leaving the territory of the Member States was neither claimed nor proven in this case. The fact that the competent authority in Portugal promised a work permit and a residence permit in the event of deletion of the entry does not create an obligation to delete according to the SIS Return Regulation. Furthermore, although a consultation procedure was initiated by the Portuguese authority on September 17, 2023, in which it inquired about the reasons for the return notice, there was no further feedback after the response from R.

A.3. In a statement dated April 16, 2025, the CP summarized that they left Austria on October 1, 2022, at 14:00 with the airline N\*\*\*air and flew to Portugal. The CP lost the boarding pass but has the payment receipt. Furthermore, the CP has a permanent residence in Portugal. The Agência para a integração migrações e asilo (AIMA) informed the CP that it could only issue a residence card after the deletion of the return notice had been carried out. The CP has proof of their permanent residence as well as their employment.

The attachments included:

- an invoice for a flight ticket from Vienna to Lisbon,
- a payslip,
- a statement from April 14, 2025, that the CP works for a logistics company, and
- the CP's passport.

#### B. Subject of the Complaint

B.1. The subject of the complaint is the question of whether R violated the CP's right to erasure by not complying with the request for deletion dated September 30, 2024 (deletion of the notice from the SIS) until the conclusion of the proceedings before the Data Protection Authority.

#### C. Findings of Fact

C.1. The CP is an Indian citizen. The CP submitted an application for international protection to R on August 27, 2019. R rejected this application on November 29, 2019. rejected by decision and a return decision was issued without an entry ban. The decision has been confirmed by the Federal Administrative Court and thereby became legally binding on January 23, 2020.

Subsequently, the data of the applicant (bP) was entered into the Schengen Information System (SIS) on August 24, 2023, by the District Court (BG) for the return of illegally staying third-country nationals. The bP applied to the BG on September 30, 2024, for the deletion of the entry in the SIS, which was not granted.

Thereafter, the bP filed the present complaint with the Data Protection Authority, claiming a violation of the right to deletion.

Evidence assessment regarding C.1.: The findings are based on the consistent submissions of the bP dated March 17, 2025, and the BG dated April 14, 2025.

C.2. The bP has not left the territory of the (Schengen) Member States since the aforementioned decision of the BG on January 23, 2020. On September 17, 2023, a consultation procedure was initially initiated by the Portuguese authority, in which it inquired about the reasons for the return entry, however, after the response from the BG, no further consultation or feedback occurred. The BG was not informed by the competent Portuguese authority about any possible issuance of a residence permit to the bP until the conclusion of the complaint procedure before the Data Protection Authority.

Evidence assessment regarding C.2.: The findings are derived from the submissions of the BG dated April 14, 2025. The bP did not contest the submissions of the BG – despite being given the opportunity in the form of a hearing. Furthermore, there are no indications to doubt the submissions of the BG. The bP also confirmed in its statement dated April 16, 2025, within the framework of the hearing, that it left on October 1, 2022, via the airline N\*\*\*air Österreich and flew directly to Portugal (see especially the submitted attachment - invoice for a flight ticket from Vienna to Lisbon). No proof that the bP actually left the territory of the Schengen Member States was provided by it until the end of the procedure. Although the bP submitted a payslip or a work confirmation, it did not provide proof that a valid residence permit was issued by the competent Portuguese authority. Rather, it stated that one would only be granted once the deletion of the entry from the Schengen Information System (SIS) is carried out (see statement dated April 16, 2025).

#### D. From a legal perspective, it follows:

##### D.1. Regarding the relevant procedural provisions:

Article 3 of the SIS Return Regulation reads as follows:

##### Article 3

##### Entry of return entries into the SIS

(1) The Member States shall enter return entries of third-country nationals against whom a return decision has been issued into the SIS in order to verify compliance with the return obligation and to support the enforcement of return decisions. After the issuance of the return decision, a return entry shall be entered into the SIS without delay.

(2) Member States may refrain from entering return entries into the SIS if the return decisions concern

third-country nationals who have been detained pending deportation. If the third-country nationals concerned are released from detention but not deported, a return entry shall be entered into the SIS without delay.

(3) Member States may also refrain from entering return entries if the return decision is issued at the external border of a Member State and is immediately enforced.

(4) The period for voluntary departure granted in accordance with Article 7 of Directive 2008/115/EC shall be immediately noted in the return entry. Any extension of this period shall be noted in the entry without delay.

(5) Any suspension or postponement of the enforcement of the return decision, including as a result of the filing of an appeal, shall be noted in the return entry without delay.

Article 9 (2) of the SIS Return Regulation reads as follows:

Article 9

Pre-consultation before the issuance or extension of a residence permit or visa for long-term stay [...]

(2) If a Member State considers granting or extending a residence permit or visa for long-term stay to a third-country national for whom another Member State has entered a return entry not associated with an entry ban, the granting Member State shall immediately inform the issuing Member State of the intended or completed issuance of a residence permit or visa for long-term stay. The issuing Member State shall immediately delete the return entry.

Article 14 (1) of the SIS Return Regulation reads as follows:

Article 14

Deletion of entries

(1) In addition to the provisions of Articles 6 and 8 to 12, return entries shall be deleted if the competent authority has revoked or annulled the decision on which the entry was based. Return entries shall also be deleted if the affected third-country national can prove that they have left the territory of the Member States in accordance with the relevant return decision.

Article 19 of the SIS Return Regulation reads as follows:

**\*\*Article 19\*\***

**\*\*Applicability of Regulation (EU) 2018/1861\*\***

Unless otherwise provided in this Regulation, the data entered into and processed in the SIS in accordance with this Regulation shall be subject to the conditions for the entry, processing, and updating of alerts, the responsibilities of the Member States and eu-LISA, the conditions for access to alerts, and the verification periods for alerts, data processing, data protection, liability and monitoring, as well as statistics, as set out in Articles 6 to 19, Articles 20 paragraphs 3 and 4, Articles 21, 23, 32 and 33, Article 34 paragraph 5, and Articles 36a, 36b, 36c, as well as Articles 38 to 60 of Regulation (EU) 2018/1861.

**\*\*Article 53\*\***

**\*\*Right to Access, Rectification of Incorrect Data and Deletion of Illegally Stored Data\*\***

(1) The data subjects must be able to exercise the rights referred to in Articles 15 to 17 of Regulation (EU) 2016/679 and in Article 14 and Article 16 paragraphs 1 and 2 of Directive (EU) 2016/680.

**\*\*Article 54\*\***

**\*\*Legal Remedy\*\***

(1) Without prejudice to the provisions of Regulation (EU) 2016/679 and Directive (EU) 2016/680 regarding legal remedies, everyone has the right to lodge a legal remedy concerning an alert relating to them for access, rectification, deletion, information, or compensation with any competent authority, including a court, that is competent under the law of a Member State.

**\*\*D.2. Based on these provisions, the following arises for the case at hand:\*\***

On November 29, 2019, a return decision without an entry ban was issued against the applicant (bP).

The bP filed a complaint against this on December 30, 2019, and the Federal Administrative Court confirmed the decision of the District Court on January 20, 2020, by dismissing the bP's complaint. The decision has thus become final.

Subsequently, on August 24, 2023, the District Court issued an alert for return in the SIS in accordance with Article 3 of the SIS Return Regulation. The present request for deletion of the bP concerns this alert.

Deletion of alerts in the SIS is only required under Article 14 paragraph 1 first sentence of the SIS Return Regulation under the conditions mentioned in Articles 6 and Articles 8 to 12 of the same regulation or if the competent authority has withdrawn or declared null and void the decision based on which the alert was entered. Furthermore, alerts for return must be deleted in accordance with Article 14 paragraph 1 second sentence of the SIS Return Regulation if the affected third-country national can prove that they have left the territory of the Member States in accordance with the relevant return decision.

As established, the return decision issued to the bP by the District Court has become final and is currently in effect. Therefore, deletion under Article 14 paragraph 1 first sentence of the SIS Return Regulation is not applicable.

Moreover, there is no evidence that the bP has actually left the territory of the (Schengen) Member States. The represented bP has not submitted any corresponding proof (e.g., stamp in the passport) to the data protection authority, despite being given the opportunity to do so in the form of a hearing. It is not overlooked that the bP has submitted an invoice for a flight ticket from Vienna to Lisbon; however, both Portugal and Austria are (Schengen) Member States. Therefore, as previously stated, the bP has not provided any objective, factually verifiable evidence of leaving the territory of the (Schengen) Member States during the ongoing proceedings.

In the overall consideration, deletion under Article 14 paragraph 1 second sentence of the SIS Return Regulation is therefore not applicable.

To the extent that the bP claims that the competent authority from Portugal (Agencia para a integracao migracoes e asilo (AIMA)) has promised a work permit and residence permit in the event of deletion of the entry from the SIS, it must be countered that this does not trigger any obligation to delete:

As can be seen from the wording of Article 9 paragraph 2 of the SIS Return Regulation, a Member State that considers granting a third-country national, for whom another Member State has entered a return alert not associated with an entry ban, a residence permit or a visa for long-term stay, must inform the alerting Member State without delay. Under these conditions, the alerting Member State deletes the return alert.

As established, there has been no notification to the District Court by the competent Portuguese authority regarding any potential granting of a residence permit to the bP until the conclusion of the complaint proceedings before the data protection authority.

The competent Portuguese authority inquired about the reasons for the return alert on September 17, 2023; however, no further steps were taken by them after the response was provided (November 14, 2023). In any case, the District Court has not been informed that the Portuguese authority intends to grant the bP either a residence permit or a visa for long-term stay or that this has already been granted. The data protection authority notes that this does not fulfill the formal requirements established by the European legislator.

standardized - prerequisites for the deletion of the return notice are also not met in accordance with Art. 9 para. 2 SIS Return Regulation.

However, this does not fulfill the purpose of the notice in the SIS, which, according to Art. 3 para. 1 SIS Regulation, is to enable a review of whether the return obligation has been complied with and to support the enforcement of the return decision, and the data processing continues to be necessary.

### D.3. Result:

As a result, the data processing in question in the SIS is lawful, and currently, no grounds for deletion in the sense of Art. 6 and Art. 8 to Art. 12 as well as Art. 14 para. 1 first sentence SIS Return Regulation can be established, which is why there is no violation of the right to deletion.

The complaint was therefore to be dismissed as stated.

Note:

There is no objection to transmitting this decision of the Austrian Data Protection Authority to the Portuguese authorities. It is expressly referred to Art. 9 para. 2 of the SIS Return Regulation, according to which the member state issuing a residence permit (here: allegedly Portugal) must promptly inform the issuing member state (here: Austria) of the intended or completed issuance of a residence permit.